

ELIZABETH II



1970 CHAPTER xxix

An Act to confer further powers on the lord mayor, aldermen and citizens of the city of Stoke-on-Trent in relation to the finances of the city; and for other purposes.

[29th May 1970]

WHEREAS—

(1) The city of Stoke-on-Trent (hereinafter referred to as “ the city ”) is a municipal borough subject to the Acts relating to municipal corporations and is a county borough within the meaning of the Local Government Act 1888 and is under the management and local government of the lord mayor, aldermen and citizens of the city acting by the council (hereinafter referred to as “ the Corporation ”):

1888 c. 41.

(2) It is expedient to make further and better provision with reference to the finances of the Corporation and that the powers of the Corporation in relation to the investment of their super-annuation fund should be extended as by this Act provided:

(3) It is expedient that the other provisions in this Act should be enacted;

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Stoke-on-Trent Corporation Act 1970.

(2) The Stoke-on-Trent Corporation Acts 1923 to 1935 and this Act may be cited together as the Stoke-on-Trent Corporation Acts 1923 to 1970.

Interpretation.

2.—(1) In this Act the following expressions have the meanings hereby assigned to them:—

“ the city ” means the city of Stoke-on-Trent;

“ the Corporation ” means the lord mayor, aldermen and citizens of the city acting by the council;

“ debentures ” includes debenture stock and bonds whether constituting a charge on assets or not, and loan stock;

“ enactment ” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the fund ” means the superannuation fund maintained by the Corporation under Part I of the Local Government Superannuation Act 1937;

1937 c. 68.

“ recognised stock exchange ” in its application to the United Kingdom has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958;

1958 c. 45.

“ securities ” includes funds, bonds, mortgages, stocks, shares, debentures or notes;

“ shares ” includes stock.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

3. In addition to the modes of borrowing prescribed by the Local Government Act 1933 the Corporation may raise money—
Power to raise money by bills.

- (1) for any purpose for which the Corporation are authorised to borrow; 1933 c. 51.
- (2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills to be called “Stoke-on-Trent Corporation Bills” (in this section referred to collectively as “bills” and separately as “a bill”) subject to and in accordance with the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill;
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable;
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine;
- (d) Bills shall be issued under the authority of a resolution passed by the Corporation and shall bear the signature of the treasurer to the Corporation or of some other person authorised by the Corporation;
- (e) The Corporation may make regulations providing for—
 - (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill;
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised in respect of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised;

(g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(i) the sum of one million five hundred thousand pounds; or

(ii) one-fifth of the amount of the estimated gross rate income of the Corporation during the then current financial year;

whichever is the greater:

(h) Subject to the provisions of the last preceding paragraph, the Corporation may renew a bill at maturity:

(i) The Corporation may borrow for the purpose of repaying the principal money raised by bills, but except as aforesaid any powers of the Corporation to borrow shall be suspended to the extent of the amount which has then been raised by the issue of bills.

In this section—

“ gross rate income ” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

1967 c. 9.

“ revenues ” has the same meaning as in section 218 of the Local Government Act 1933;

1933 c. 51.

“ signature ” includes a facsimile of a signature by whatever process reproduced.

Power to
raise money
by bearer
bonds.

4. In addition to any other method by which the Corporation may raise money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
abroad.

5.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if

for any reference in those enactments to sterling there were substituted a reference to the foreign currency, and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency, adjusted where necessary to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction.

6.—(1) In its application to the investment by the Corporation under subsection (3) of section 21 of the Local Government Superannuation Act 1937 of any moneys forming part of, but which are not for the time being moneys required to meet payments out of, the fund, the Trustee Investments Act 1961 shall have effect as if—

Extension of power to invest superannuation fund moneys.
1937 c. 68.
1961 c. 62.

(a) the following paragraphs were included in Part III (Wider-Range Investments) of Schedule 1 to that Act:—

“ 4. In any securities (other than those included in Part I and Part II of this Schedule) issued in any part of the world, being securities which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or

5. In the purchase, whether alone or jointly or in common with any other person or corporation, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or

6. In the advance of money upon the security of—

(i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

(ii) any legal estate or interest in immovable property comprised in a building agreement as specified in the last foregoing paragraph;

and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or

7. In undertaking or financing whether alone or jointly with any other person—

(i) the erection of a new building or the improvement or extension of an existing building; or

(ii) building operations or other development; or

(iii) the management of land or buildings;
on land belonging to the Corporation or to any other person or on land which is, or will be, held jointly by the Corporation and any other person; or

8. Upon the security of freehold or leasehold ground rents, land charges or rentcharges; ”;

(b) (i) in paragraph 1 of Part IV (Supplemental) of Schedule 1 to that Act there were inserted after the word “ schedule ” the words “ other than those mentioned in paragraph 4 of the said Part III ”;

(ii) after paragraph 2 of the said Part IV of the said schedule there were inserted the following paragraph:—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue).”.

1961 c. 62.

(2) Notwithstanding anything in the Trustee Investments Act 1961 the Corporation may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the said Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested—

(a) at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the fund;

(b) in any investment in the manner specified in paragraphs 5 and 7 of Part III of the said schedule as so amended at any time when the value of all investments made under the said paragraphs 5 and 7 which form part of the superannuation fund equals or exceeds one-quarter of the total value of the wider-range part of the fund.

(3) For the purposes of the proviso to subsection (2) of this section, the value of any investment forming part of the fund shall be treated as being the value of the investment at the time of the division of the fund or at the time at which the investment was made, whichever is the later.

(4) All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the fund or otherwise in relation thereto shall be paid by the Corporation out of the fund.

(5) (a) For the purposes of the foregoing provisions of this section an investment in the units of a unit trust scheme or in

participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or in any of the Channel Islands or in the Isle of Man having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of such land or interest in land as are specified in that subsection shall be regarded as an investment in the securities in question or in such land or interest in land.

(b) In this subsection—

“ participation certificate ” means any document conferring upon the holder the right to participate in (or constituting evidence of the right of the holder to participate in) the profits or income arising from the acquisition, holding, management or disposal of a particular investment specified or described in the document;

“ unit trust scheme ” has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958.

1958 c. 45.

(6) The restrictions contained in paragraphs 1, 2 (b) and 3 of Part IV of Schedule 1 to the Trustee Investments Act 1961 shall not apply to the securities in which the Corporation is authorised to invest by virtue of paragraph 1 of Part III of the said Schedule 1 or by virtue of subsection (1) of this section.

1961 c. 62.

7.—(1) The Corporation may advance money to—

(a) any person for the purpose of enabling or assisting him to purchase or lease any land in the city; or

(b) the purchaser or lessee of any land in the city for the purpose of enabling or assisting him to construct, extend or improve any building on the land or to provide services or facilities relating thereto.

Power to
lend, etc., for
purchase,
etc., of land,
or for
building
purposes.

(2) The amount of the principal of any advance made under this section shall not exceed three-quarters of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(3) The provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963 (which section empowers local authorities to make advances for the erection of buildings on land sold or let by them) shall apply in relation to an advance made under subsection (1) of this section, and for that purpose those provisions shall have effect subject to the substitution for references therein to an advance made under the said section 3 of references to an advance made under subsection (1) of this section and to any other necessary modifications.

1963 c. 29.

(4) Any person acting on behalf of the Corporation and authorised in writing by their clerk shall have power at all reasonable times, after giving not less than seven days' notice to the occupier, to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(5) In this section—

“land” includes land covered by water; and

“lessee” includes a person to whom the owner has agreed to grant a lease.

Power to
borrow.

8.—(1) The Corporation may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

1933 c. 51.

and subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Exchange
control.

9. It shall not be lawful to exercise the powers conferred by any of the provisions of this Act except in compliance with the Exchange Control Act 1947.

1947 c. 14.

Costs of Act.

10. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act.

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Stoke-on-Trent Corporation Act 1970

CHAPTER xxix

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